Republic of the Philippines
ENERGY REGULATORY COMMISSION
Pasig City

RESOLUTION NO. 21 Series of 2025

A RESOLUTION DELEGATING THE AUTHORITY FOR THE APPROVAL AND AWARD OF CONTRACTS FOR THE PROCUREMENT OF GOODS AND SERVICES, AND RENEWAL THEREOF, WITH AN AMOUNT OF MORE THAN TWO MILLION PESOS BUT NOT EXCEEDING TEN MILLION PESOS

WHEREAS, pursuant Republic Act No. 12009, otherwise known as the *"New Government Procurement Act"*, and its Implementing Rules and Regulations, the Commission *en banc*, as Head of Procuring Entity (HoPE), has the authority to approve or award contracts in relation to procurement matters;

WHEREAS, in accordance with Office Order No. 85, Series of 2025, or the Amended Manual of Approving and Signing Authorities, the Commission *en banc* delegated to the Chairperson and CEO and two (2) Commissioners, acting collectively, the authority to approve and award contracts for the procurement of goods and services, and renewal thereof, including lease of venue, negotiated procurement under emergency cases and repeat order, with an amount more than Two Million Pesos (PhP2,000,000.00) but not exceeding Ten Million Pesos (PhP10,000,000.00); Provided, that the three (3) members of the Commission upon whom the authority is delegated shall vote unanimously. Otherwise, the matter shall be elevated to the Commission *en banc*;

WHEREAS, the designation of three (3) members of the Commission, acting collectively, to undertake the above tasks is deemed necessary to streamline and expedite the procurement processes, thereby enhancing the efficiency and effectiveness of the Commission's procurement activities;

NOW, THEREFORE, BE IT RESOLVED, as it is hereby RESOLVED, that the Commission *en banc* is delegating to **Chairperson and CEO Francis Saturnino C. Juan**, **Commissioner Marko Romeo L. Fuentes** and **Commissioner Amante A. Liberato**, the authority to approve and award contracts for the procurement of goods

and services, and renewal thereof, including lease of venue, negotiated procurement under emergency cases and repeat order, with an amount more than Two Million Pesos (PhP2,000,000.00) but not exceeding Ten Million Pesos (PhP10,000,000.00).

This Resolution shall take effect immediately on the date indicated herein.

Let copies of this Resolution be published on the ERC Website and such other online platform available to the Commission.

Pasig City, 16 October 2025.

FRANCIS SATURNINO C. JUAN
Chairperson and CEO

FLORESINDA G. BALDO-DIGAL
Commissioner

MARKO ROMEO L. FUENTES
Commissioner

AMANTE A. LIBERATO
Commissioner

PARIS G. REAL
Commissioner